# VENDOR SERVICE CONTRACT

Mesa Osprey Collegiate Commons | Charlotte, NC

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| **Owner** | Mesa Osprey Collegiate Commons Owner LLC |
| **Contractor** | SafeGuard Fire & Life Safety |
| **Services** | fire alarm and sprinkler inspection |
| **Property** | Mesa Osprey Collegiate Commons |
| **Effective Date** | July 13, 2020 |

**1. Scope of Services.** Contractor shall furnish all labor, materials and equipment necessary to perform fire alarm and sprinkler inspection at Mesa Osprey Collegiate Commons in accordance with the specifications attached hereto. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

**2. Term and Termination.** This Contract commences on the Effective Date for a term of 42 months and may be terminated by either party on thirty days' written notice. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**3. Compensation.** Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**4. Insurance.** Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NC.

**5. Independent Contractor.** Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**6. Standard of Performance.** Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**7. Indemnification.** Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only